

25NWCV01184 25NWCV01184

County: los-angeles

Division: Civil Law and Motion

Department: R

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Case Number: 25NWCV01184 Hearing Date: September 3, 2026 Dept: R

#16

CONTRERAS v. MAZDA MOTOR OF
AMERICA, INC.

CASE NO.: 25NWCV01184

HEARING: Thursday, September 3, 2026, at 9:30 AM

Defendant MAZDA MOTOR OF AMERICA, INC's Motion to Compel
Plaintiff IGNACIO GOMEZ CONTRERAS' Deposition is GRANTED.

Moving Party to give notice.

Background

On April 4, 2025, Plaintiff
IGNACIO GOMEZ CONTRERAS ("Plaintiff") filed this "lemon law" action against
Defendants MAZDA MOTOR OF AMERICA, INC ("Defendant" or "Mazda") and DOES 1
through 10, inclusive.

Plaintiff's Complaint alleges the
following causes of action:

(1)

Violation

of Song-Beverly Act – Breach of Express Warranty;

(2)

Violation

of Song-Beverly Act - Breach of Implied Warranty; and

(3)

Violation

of the Song-Beverly Act § 1793.2

On April 17, 2026, Defendant
filed the instant motion to compel Plaintiff's deposition.

Discussion

On April 29, 2025, Defendant served
Notice of Deposition of Plaintiff Ignacio Gomez Contreras' deposition, set to
occur on June 10, 2025. On June 3, 2025, Plaintiff served objections to
Defendant's deposition notice, stating Plaintiff would not appear for
deposition.

On June 9, 2025, Defense Counsel
sent Plaintiff Counsel alternative dates for deposition. Plaintiff's Counsel
did not respond. On June 16, 2025, Defense Counsel proposed further dates.

On August 5, 2025, Plaintiff Counsel provided
Defense Counsel three dates to select for Plaintiff's Deposition. Defense
Counsel selected September 12, 2025, a mutually agreed upon date, as the date
for Plaintiff's deposition. However, Plaintiff objected to this mutually agreed
upon date. Defendant followed upon once again on September 23, 2025.

"Pursuant to CCP §2025.450, if after service of a deposition
notice, a party to the action or an officer, director, managing agent, or
employee of a party, or a party designated by an organization that is a party...
without having served a valid objection, fails to appear for examination, or
proceed with it, or to produce for inspection any document, the party giving
notice may move for an order compelling the deponent's attendance and
testimony, and the production for inspection of any document. (CCP §2025.450(a).)

Plaintiff failed to appear for deposition after Defendant
served notice for a mutually agreed upon date.

The Motion is GRANTED. Plaintiff is ORDERED to produce Ignacio Gomez Contreras to appear for a deposition by no later than 30 calendar days from the date of the Court's issuance of this Order.

If [the] motion is granted, the court shall impose a monetary sanction...in favor of the party who noticed the deposition and against the deponent or the party with whom the deponent is affiliated, unless the court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (CCP §2025.450(g)(2).)

Reasonable sanctions in favor of the Moving Party (Defendant) are GRANTED. To date, nothing has been filed with this Court to indicate that Plaintiff or Plaintiff's Counsel have made good faith efforts to schedule the deposition at issue. Reasonable sanctions are GRANTED in the total amount of \$500.00. Plaintiff IGNACIO GOMEZ CONTRERAS and their Counsel of Record is ORDERED to pay Moving Party and their counsel of record sanctions in the total amount of \$500.00, payable within 60 days from the date of the Court's issuance of this Order.